

Contentious Chamber

Decision on the merits 65/2024 of April 26, 2024

File number: DOS-2020-04419

Subject: Complaint regarding a refusal to erase by a press publisher

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Yves Pouillet and Christophe Boeraeve, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Ms. X, represented by Me Nicolas BERTHOLD and Me Estelle DESWYSEN, lawyers at the Brussels Bar, whose office is located at 1000 Brussels, chaussée de Waterloo 880;

Hereinafter referred to as "the complainant";

The defendant:

Y, represented by Me Sandrine CARNEROLI and Me Alain BERENBOOM, lawyers, whose office is located at 1000 Brussels, rue de Florence 13;

Hereinafter referred to as "the defendant".

Decision on the merits 65/2024 — 2/20

I. Facts and procedure

1.

The complaint alleges the defendant's failure to respond to the complainant's request for erasure (made under Article 17.1 of the GDPR) of certain press articles published online by newspaper A, of which the defendant is the owner, on the website of said newspaper A [website A].

2. On September 16, 2020, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendant. The facts underlying the complaint and the disputed articles are detailed below:

-

The first article appeared in the print edition of newspaper A on (...) 2017, under the title "....." (article 1). It reports on the involvement of the complainant in a criminal proceeding related to cannabis trafficking and (...). The article is illustrated by a photograph of the complainant wearing her lawyer's robe in a courthouse, with a black band over her face.

The complainant alleges that this photograph could not have been taken during the hearing mentioned, as she was not present but was represented by her counsel. Furthermore, she was not heard in her capacity as a lawyer.

This article is available online at [...] on the website A.

-

Newspaper A revisits this case in its print edition of (...) 2017, the day after the hearing before the Criminal Court, with a second article titled: "....." (article 2), also available online at [...]. This article reports on the hearing and the defense of the complainant. It is illustrated with the same photograph as that published in the first article, but without the black band over her face this time.

-

On (...) 2017, newspaper A reports on the acquittal of the complainant in a third article titled: "....." (article 3). The article is illustrated by the same photograph of the complainant, without the black band over her face.

3. On April 17, 2020, the complainant's previous counsel contacted the defendant by email sent to the

address []. at precisely 2:18 PM.

4. In this email, he states that the aforementioned press articles constitute a media onslaught against his client and violate her right to the presumption of innocence. He adds that the publication of her photograph infringes on her right to her image and that certain passages of the disputed articles harm her honor and reputation. As the electronic archives of newspaper A continue to perpetuate the memory of these events, he indicates that the complainant is exercising her right to be forgotten and to erasure as recognized by Article 17.1 of the GDPR against the defendant through said email.

Decision on the merits 65/2024 — 3/20

5. It appears from the documents in the file that this sending is immediately followed by a forward without any accompanying message to the address [privacy@... = address 2] on the same day at 14:23.

6. Without any news from the defendant, the complainant's counsel sends a reminder by email on June 2, 2020. At 14:19, a forward of the emails from April 17, 2020 (point 3) is sent to [privacy@... = address 2] and to [dpo@ ... i.e., the address of the group's Data Protection Officer = address 3]. This sending is immediately followed by a forward without any accompanying message to [info@journal A.be = address 4] at 14:30. Finally, another forward is made to the address [info@... = address 5] at 14:34.

7. In the absence of any reaction from the defendant to these sendings, the complainant files a complaint with the APD on September 16, 2020, as stated in point 2 above.

8. On September 17, 2020, the complainant's previous counsel informs the defendant that he has filed a complaint with the APD, reminding that his sendings of April 17 (point 3) and June 2, 2020 (point 6) have gone unanswered.

9. On September 30, 2020, the defendant's counsel sends an official letter to the complainant's previous counsel. In this letter, they request a copy of the email from April 17, as well as the reminders and the complaint that initiated the proceedings before the APD. In the same letter, the defendant's counsel also informs that their client refuses to grant the right to be forgotten requested by the complainant and that no modifications will be made to the relevant articles in support of various arguments detailed in said letter.

10. On October 27, 2020, the complaint is declared admissible by the APD's First Line Service (SPL) based on Articles 58 and 60 of the LCA and transmitted to the Litigation Chamber under Article 62, § 1 of the LCA.

11. On April 1, 2021, the Litigation Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the file can be processed on the merits.

12. On the same date, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions.

13. On April 6, 2021, the defendant requests a copy of the file (art. 95, §2, 3° LCA), which is sent to them on April 9, 2021. They also express their intention to avail themselves of the opportunity to be heard, in accordance with Article 98 of the LCA.

14. In a subsequent letter dated April 15, 2021, addressed to the parties, the Litigation Chamber replaces the previously communicated deadlines for conclusions as follows: the deadline for the receipt of the defendant's response conclusions is set for June 2, 2021; the deadline for the receipt of the complainant's response conclusions is set for July 6, 2021, and the deadline for the receipt of the defendant's reply conclusions is set for August 9, 2021.

15. On June 2, 2021, the Litigation Chamber receives the defendant's response conclusions. The defendant having submitted summary conclusions, their arguments are summarized in point 17 below.

16. On July 6, 2021, the Litigation Chamber receives the complainant's reply conclusions.

a. In support of her request for deletion (based on Article 8 of the European Convention on Human Rights (Conv. eur. D.H.) and Article 17.1 of the GDPR), the complainant argues the reduced interest of the disputed press articles in the context of a public interest debate as well as the age of the facts, the lack of proportionality (the criminal case reported having no connection to the complainant's work as a lawyer and the necessity of forgetting in criminal law a fortiori for acquitted persons) and the repercussions of the continued online presence of the publications on her private and professional life.

b. Regarding the grievance of violation of Article 12.3 of the GDPR, the complainant denounces that more than 5 months elapsed between her request of April 17, 2020 (point 3) to exercise her right to be forgotten and the defendant's response of September 30, 2020 (point 9). Even considering that her request only reached the defendant on June 2, 2020 (reminder), the defendant allowed a period of 4 months to elapse between this latter date and September 30, 2020, in violation of said Article 12.3 of the GDPR.

c. The complainant also denounces that the defendant does not fulfill its obligation to facilitate the exercise of the rights of the data subjects as provided for in Article 12.2 of the GDPR nor its obligation to inform "in a concise, transparent, understandable, and easily accessible" manner the data subjects on how to exercise their rights as required by Articles 12.1, 13, and 14 of the GDPR.

17. On August 9, 2021, the Litigation Chamber receives the defendant's summary conclusions.

a. Based on the criteria established by the European Court of Human Rights¹ to balance the right to respect for private life on the one hand and

1 The defendant includes: the contribution to a public interest debate, the notoriety of the person concerned, the subject of the publication, the prior behavior of the person concerned, the content, form, and repercussions of the publication as well as the manner and circumstances in which the information was obtained and its veracity. As for the measures

Decision on the merits 65/2024 — 5/20

the right to freedom of expression and information on the other hand, the defendant believes that it can validly rely on the exception of Article 17.3. a) of the GDPR.

b. Since the data processing concerned is necessary for freedom of expression and information within the meaning of this article, the defendant considers itself authorized to continue the online publication of the 3 disputed articles.

c. Regarding the complaint concerning the violation of Article 12.3. of the GDPR, the defendant states that it indeed did not respond to the complainant within the one-month period of Article 12.3. in response to her emails of April 17 and June 2, 2020. In this regard, it states that it never received a deletion request sent to the dedicated address [address 1] indicated in Article XII of the Privacy Policy available from all pages of the newspaper A's website on which the disputed articles were published. Furthermore, apart from the email address of its Data Protection Officer (DPO), the other email addresses used by the complainant's previous counsel either no longer existed (address 4) or were not the addresses to which a deletion request should have been sent (address 2 and address 5).

d. As for the complaint regarding the violation of Article 12.2. of the GDPR, the defendant indicates that the complainant herself complicated the situation by sending her request to multiple email addresses not managed by the newspaper A, even though the relevant addresses to be used were easily accessible in the privacy policy available from each page of the newspaper A's website on which the disputed articles were published.

e. Finally, regarding the complaint concerning the violation of Articles 12.1, 13, and 14 of the GDPR, the defendant indicates that the complainant does not provide the reasons that justify this extension of the complaint and how she was not (adequately) informed.

18. On February 7, 2024, the defendant submitted a new document consisting of a 2023 judgment from the French-speaking Court of First Instance (TPI) of Brussels – civil section (R.G.: 22/3662/A). This judgment reveals that the complainant initiated civil proceedings subsequent to the filing of her complaint with the APD, concerning notably the same disputed articles and the same photograph, based on Article 8 of the European Convention on Human Rights and Article 17.1. of the GDPR:

a. Regarding the text of the three aforementioned disputed articles:

allowing for the limitation of interference in private life, the defendant also indicates that it took this into account in the balance it performed.

Decision on the merits 65/2024 — 6/20

o

As a primary measure, that the articles no longer be disseminated on the website of the newspaper (read newspaper A) of the defendant, including on its paid section (this measure does not entail any

deletion of the articles, the defendant being able to keep them intact in its electronic archives);

o

As a subsidiary measure, that the articles be anonymized, as follows: the name and surname of the complainant be replaced by her initials in the text of the disputed articles and the meta tags of the source code of the relevant pages on one hand, and by indicating the value "no index" in the meta tag "robots" of the relevant pages on the other hand (which would not prevent the defendant from retaining the full identity of the complainant in the database of its electronic archives).

b. Regarding the disputed photograph:

o

As a primary measure, that the photograph no longer be disseminated online on the website of newspaper A (which would not prevent the defendant from keeping it intact in its electronic archives);

o

As a subsidiary measure, that the image of the complainant, present in the photo, be entirely blurred, so that she is no longer recognizable (which would not prevent the defendant from keeping the photo, as it was originally published, in the database of its electronic archives).

19. By virtue of its judgment of (...), the TPI of Brussels declares the request for prohibition of dissemination of the disputed press articles and the photograph, as well as the request for anonymization and blurring of these, unfounded and dismisses the complainant's claims.

20. The TPI, on the other hand, declares the request for de-indexing made by the complainant to be founded and orders the defendant to proceed with the de-indexing of the three disputed articles, by indicating the value "no index" in the meta tag "robots" of the relevant pages, under penalty of a fine of €25 per day of delay from the notification of the judgment.

21. In its judgment, the court states that it is undisputed that Article 17.1. of the GDPR applies to press archives, including with regard to the photographs they may contain. It recalls that the right to erasure is not absolute and must notably be reconciled with the right to freedom of expression and information, this freedom being one of the essential foundations of a democratic society. Following the balancing of interests present in the case at hand, the court dismisses the request for deletion or anonymization (with blurring of the photograph) of the disputed articles based on criteria related to the content of the articles, the manner in which and the place where the information was obtained, the truthfulness and accuracy of the data, and the role of the complainant in public life.

Decision on the merits 65/2024 — 7/20

public and the values of general interest and current relevance of the concerned press articles. The judgment further emphasizes, notably supported by the jurisprudence of the European Court of Human Rights, that while the actions of search engines certainly amplify accessibility to the concerned information, it remains that the person wishing to exercise their right to erasure may choose to direct their action against the publisher of the website on which the disputed articles were published. The judgment concludes that the request for de-indexing the disputed articles made against the defendant is justified in this case and is likely to ensure a fair balance between the right to respect for private life legitimately invoked by the complainant on one hand and the right to freedom of expression defended by the defendant on the other hand.

22. Given the submission of this new element unknown to the parties at the time of the deadline for conclusions (point 14), the Contentious Chamber invites the parties to submit final conclusions regarding this new document by February 20, 2024. The deadlines for the submission of these final conclusions are set for March 6, 2024, for the complainant and March 21, 2024, for the defendant.

23. On February 23, 2024, the parties are informed that the hearing will take place on March 25, 2024.

24. On March 6, 2024, the complainant submits their final conclusions. In these, the complainant indicates that following the judgment of the General Court, she has been able to ascertain that the defendant has proceeded with the de-indexing of the three disputed articles. She adds that these articles are now untraceable—both when searching by their respective URLs, by their titles, or by keywords, including her first and last name—via search engines, as well as through the website of newspaper A on which they were previously published. Regarding the disputed photograph, the complainant specifies that it also seems no longer available either on the internet or on the website of newspaper A.

25. Based on the above, the complainant indicates that she reduces the requests that initiated the procedure she brought before the APD since some of them, namely those related to the application of Article 17.1 of the GDPR, have become moot following the aforementioned judgment.

26. The complainant, however, maintains the grievances arising from the alleged breaches of Articles 12.3, 12.2, as well as 12.1, 13, and 14 of the GDPR as developed in her previous conclusions (point 16) and requests the Contentious Chamber to conclude that the defendant has violated its obligations arising from these provisions.

27. On March 21, 2024, the defendant submits its final conclusions (second summary conclusions). In these, it emphasizes that the complainant's last conclusions of March 6, 2024, assert that following the judgment of the Brussels General Court of (...) (point 18), the question of the erasure of her personal data has become moot and that her complaint is now limited to the non-compliance with Articles 12.1, 12.2, and 12.3 as well as 13 and 14 of the GDPR. The defendant concludes regarding only the grievances arising from these articles in line with its summary conclusions of August 9, 2021 (point 17).

28. On March 25, 2024, the parties are heard by the Contentious Chamber.

29. On April 17, 2024, the minutes of the hearing are submitted to the parties.

30. On April 20, 2024, the Contentious Chamber receives from the defendant some remarks regarding the minutes, which it attaches to the minutes in accordance with Article 54 of the Internal Rules of the APD and takes into account in its decision-making.

II. Motivation

II.1. Regarding the grievance of violation of Article 17.1 of the GDPR

31. As outlined above, the defendant produces a judgment from the French-speaking General Court of Brussels of (...) which grants the request for de-indexing the disputed articles made civilly by the complainant against the defendant. The complainant specifies, as mentioned in point 25, that as a result of the execution of this judgment, she reduces the subject of the complaint filed and abandons the grievance of a potential violation of Article 17.1 of the GDPR by the defendant, retaining only those arising from violations of Articles 12.3, 12.2, 12.1, 13, and 14 of the GDPR.

32. Regarding the alleged violation of Article 17.1 of the GDPR, the Contentious Chamber decides to dismiss this grievance for reasons of opportunity, supporting the reasoning that it will detail below in points 67-76 of this decision.

II.2. Regarding the lack of response within a month to the complainant's request for erasure (Article 12.3 of the GDPR)

II.2.1. Position of the complainant

33. As summarized in point 16.b) above, the complainant denounces the absence of a response from the defendant to her requests dated both April 17 and June 2, 2020, prior to September 30, 2020. She specifies that she sent these to email addresses (5 in total) that were all listed on the defendant's privacy policies, both that available on the website of newspaper A (address 4) and that available on the website of Y (the defendant's site). In doing so, the complainant indicated during the hearing on March 25, 2024, that she intended to maximize her chances of receiving a response from the defendant, a response she had not received to her initial submission of April 17, 2020, sent to the address [address 1] provided in the privacy policy available at...

Decision on the merits 65/2024 — 9/20

from the website of newspaper A, followed by a forward to the address [address 2] provided in the privacy policy available on the defendant's website a few minutes after this first sending. Even assuming, as the defendant argues, that it did not receive these initial sendings, 4 months elapsed between the reminder dates of June 2, 2020 (point 6) (initially addressed to addresses [address 2] and [address 3 of the DPO] and followed by forwards to [address 4] and [address 5]) and the defendant's response of September 30, 2020 (point 9).

34. The complainant believes that Article 12.3 of the GDPR has undoubtedly been violated by the defendant.

II.2.2. Position of the defendant

35. The defendant indicates that it did not respond within the one-month period prescribed by Article 12.3 of the GDPR to the requests addressed to it on April 17 and June 2, 2020. During the hearing on

March 25, 2024, it stated that it is a serious data controller, concerned not to evade its responsibilities. However, it outlines the context of the case at hand.

36. The defendant details that some of the email addresses used by the complainant on April 17, 2020 (namely, the address [address 1]) and on June 2, 2020 (namely, the address [address 3 of the DPO]) are "correct" in that they stem from the privacy policy available on the website of newspaper A; it was indeed to these addresses that the complainant's request to exercise her right to erasure of articles published by newspaper A should have been addressed. The defendant states that it can only note that no trace of the sendings to the address [address 1] has ever been found on its servers and that a technical problem must have occurred. It indicates that the forward to the address [address 2], found, by the complainant's own admission, on the defendant's website (and not specifically on the website of newspaper A) just a few minutes after the sending to the address [address 1], suggests that the sender (namely, the complainant's previous counsel) would have received an error message indicating that their message could not be delivered. The defendant adds in this regard that since the entry into force of the GDPR, messages sent to this address systematically receive an automatic acknowledgment of receipt, as the Contentious Chamber itself was able to ascertain during its sending of April 1, 2021 (see document 5 of the Contentious Chamber's procedural file).

37. As for the address [address 2], the defendant explains that it is not managed by newspaper A. The defendant is a large group that has numerous websites, and each website disseminates its privacy policy with its own contact addresses.

Decision on the merits 65/2024 — 10/20

38. The defendant also regrets that the complainant only contacted it by email and not by regular or registered mail.

39. Regarding the address [address 5], the defendant indicates that it is a general address not specified in the privacy policy of newspaper A, and that it is not intended to receive the type of message sent by the complainant and that, consequently, this message was not processed.

40. Finally, concerning the address [address 4], the defendant indicates that it is an old address that is no longer active and that automatically redirects to another. The only explanation is that the complainant or her counsel retained this address and copied it directly into their email. This address is also not listed in the privacy policy of newspaper A. Both this last sending and the sending to the address [address 5] mentioned above occurred via forward just a few minutes after the sending of June 2, 2020, to the addresses [address 2] and [address 3 of the DPO], which also suggests that error messages may have been received by the complainant in response to these sendings.

41. For the rest, the defendant adds that this is an exceptional and isolated incident. The promptness and seriousness with which it responded to the request of September 17, 2020, as early as September 30, 2020 (point 9), attest to this and should be taken into account by the Contentious Chamber in its decision. Its proposal to provide for the sending of a standardized acknowledgment of receipt to anyone submitting a request to the DPO's address (address 3), as there is already one for the address [address 1], is also an element that the Contentious Chamber should consider.

II.2.3. Assessment of the Contentious Chamber

42. The Contentious Chamber recalls that in execution of Article 12.3 of the GDPR, "the data controller provides the data subject with information on the measures taken following a request made under Articles 15 to 22, as soon as possible and in any event within one month of receiving the request. If necessary, this period may be extended by two months, taking into account the complexity and number of requests. The data controller informs the data subject of this extension and the reasons for the delay within one month of receiving the request. When the data subject submits their request in electronic form, the information is provided electronically where possible, unless the data subject requests otherwise."²

² It is the Contentious Chamber that emphasizes this.

Decision on the Merits 65/2024 — 11/20

43. The complainant having made a request to exercise their right to erasure based on Article 17 of the GDPR, Article 12.3 of the GDPR is applicable. The Dispute Chamber will therefore verify that the conditions of this article have been duly respected.

44. Regarding the calculation of the one-month period within which the data controller must provide information on the follow-up to a request to exercise rights under the aforementioned Article 12.3, this calculation must be carried out in accordance with Union law. Furthermore, it is the date of receipt of the request by the data controller that triggers this period. In other words, the one-month period begins to run when the data controller has received a request, and it is not necessary in this regard that they have actually acknowledged it. The European Data Protection Board (EDPB) considers it good practice for data controllers to confirm receipt of requests in writing, for example, by sending emails (or postal mail, where applicable) to the individuals who made the request, confirming that their requests have been received and that the one-month period runs from day B to day C.

45. Receipt by the data controller also implies that the request has reached them through one of their relevant channels as specified below.

46. The Dispute Chamber reminds that according to the aforementioned Guidelines, the EDPB encourages data controllers to provide the most appropriate and user-friendly communication channels, in accordance with Articles 12.2 and 25 of the GDPR, to enable the data subject to submit an effective request. This may include, for example, communication details of the data controller provided in their communications directly addressed to the data subjects or contact details publicly provided by the data controller, for instance, in their privacy policy or in other mandatory legal notices of the data controller (e.g., the contact details of the owner or the company on a website).

3 The deadline for responding to a request for access must be calculated in accordance with Council Regulation (EEC, Euratom) No. 1182/71 of June 3, 1971, laying down rules applicable to periods, dates, and terms, OJ L 124/1.

4 This period may be suspended when the data controller must communicate with the requester due to uncertainty regarding their identity (is it indeed the data subject as defined in Article 4.1 of the GDPR?). The period may be suspended until the data controller has obtained the necessary information from the data subject, provided that the data controller has requested additional information without undue delay. In this regard: European Data Protection Board (EDPB), Guidelines 01/2022 of March 28, 2023, on the rights of data subjects - right of access: https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_fr.pdf (point 159). The EDPB details how to understand the modalities of exercising this right, including how the request should be formulated and to whom, as well as how the one-month period provided for in Article 12.3 should apply. This Article 12.3 being applicable for the exercise of all rights referred to in Articles 15 to 22 of the GDPR, these considerations apply to the case at hand which addresses compliance with Article 12.3 of the GDPR in relation to a request to exercise the right to erasure provided for in Article 17 of the GDPR.

5 Idem, points 57 and 159.

6 Idem, point 53.

Decision on the Merits 65/2024 — 12/20

47. Nevertheless, the EDPB specifies that if a data subject submits a request using a communication channel provided by the data controller but different from the one indicated as preferable, this request must, in general, be taken into consideration, and the data controller must process it accordingly. Data controllers must indeed make all reasonable efforts to ensure that the exercise of the data subject's rights is facilitated.

48. According to the EDPB, the data controller is, however, not obliged to respond to a request sent to a random or incorrect email address (or postal address) not directly provided by the data controller, or to a communication channel that is clearly not intended to receive requests concerning the rights of the data subject, if the data controller has provided an appropriate communication channel to the data subject.

49. It is undisputed that in this case, the defendant refrained from any response to the complainant within the month following the communications of April 17 and June 2, 2020, that she sent, the first response from the defendant occurring, as already mentioned, on September 30, 2020, through her counsel in response to the letter from the complainant dated September 17, 2020.

50. The Contentious Chamber notes that from this response of September 30, 2020, the defendant

claimed not to have received the communication sent to the address [address 1], which she considers "correct" as it is included in the privacy policy available on the website of newspaper A, the site on which the disputed articles, the removal of which was requested, were published.

51. The Contentious Chamber is not entirely insensitive to the defendant's remark that the forward which immediately followed this message could be explained by the fact that the complainant's previous counsel may have received an error message or a non-receipt notification regarding this communication, nor to the fact that, consequently, there remains a doubt as to whether or not it was received.

52. Regarding the implementation of an automatic receipt message from the address dedicated to the exercise of rights (as already exists at the address [address 1] referenced in the privacy policy) as well as from the address of the DPO, the Contentious Chamber agrees with the EDPB that this is a good practice to encourage within the framework of the accountability obligation of data controllers.

7 Idem, point 53.

8 Idem, point 54 and the examples.

Decision on the Merits 65/2024 — 13/20

53. However, the Contentious Chamber can only note that the defendant did not respond to the complainant when she addressed both her and her DPO on June 2, 2020.

54. Regarding the sending on June 2 to the address [address 2], which is not specifically dedicated to the exercise of the rights of the data subject according to the defendant, at the very least in light of the articles published on the website of newspaper A, the Contentious Chamber is of the opinion that if this address is indeed not the one referenced by the privacy policy of newspaper A, the request of the complainant addressed to it should nonetheless have been processed by the defendant.

55. Indeed, it appears from the examination of the documents that the address [address 2] is provided in a document titled "Privacy Policy – Y (name of the defendant)" (document 10 of the file produced by the defendant). As a reminder, the privacy policy available on the website of newspaper A indeed qualifies the defendant as the data controller and bears the same title as this document (document 9 of the file produced by the defendant). In the introduction of these two texts, in the second paragraph, there is an explicit reference to newspaper A in these terms: "Y (the defendant) is a group of companies active in the field of information (followed by a list of newspapers including newspaper A) etc." Further on in both documents, it is specified, under the purposes of processing pursued, that personal data is processed for journalistic purposes, including dissemination and archiving for the purpose of informing the public using any media. Generally speaking, the structure of the two privacy policies is identical, the headings of the sections are the same, and their content is similar, with the exception of point c) under section V.C. of the policy available on the website of newspaper A, which relates to audience measurement of several sites, including that of newspaper A. However, it cannot be inferred by someone consulting this privacy policy that it would be specific to newspaper A. Generally, the privacy policy available on the website of newspaper A does not specify at any time that it is limited to the data processing carried out by said newspaper. Such information is also not found on the site as such. The mere fact that this privacy policy is available on the website of newspaper A is not sufficient to dismiss outright the relevance of the other privacy policies of the defendant's group, particularly for the reasons related to their similarity outlined above. Another difference between the two privacy policies lies in the fact that the one available on the website of newspaper A mentions the contact address [address 1], while the one available on the defendant's group website mentions [address 2]. The difference is subtle, and in both cases, the internet user clearly identifies the terms "privacy" and "Y," that is, the name of the defendant, in each of these two addresses. Moreover, these are not mentioned in the section "How to exercise

Decision on the merits 65/2024 — 14/20

your rights' (Title VIII) » which does not mention an email address but does include it in the contact details.

56. In support of the above, the Contentious Chamber considers that the address [address 2] provided by the defendant in the privacy policy available on the website bearing its name should also be regarded as an official channel for exercising the rights of the data subjects. Therefore, the

complainant cannot be criticized for also sending her requests to this address, especially in light of the reminder in the absence of any response to her previous communication sent 6 weeks earlier to the address specifically referenced by the A newspaper's website. The request from the complainant sent to this address should have been processed. We are far from the scenario described by the EDPB of sending to a random address or to an address clearly not intended to receive such requests.

57. In any case, these emails from June 2, 2020, which further relay the previous communications from April 17, 2020, meant that the defendant could not, as of June 2, at the very least, ignore that the request had previously been sent to her on April 17, 2020, notably to the address [address 1] which she qualifies as "correct." The receipt of the message at the defendant's DPO address on June 2, 2020, is also not contested.

58. In light of all the elements and findings that precede, the Contentious Chamber considers, on the one hand, that at the very least as of June 2, 2020, the defendant had indeed received the complainant's request which was addressed to her via her DPO as well as to the address [address 2] which she could not ignore, and on the other hand, that she refrained from responding to this request within the month prescribed by Article 12.3 of the GDPR since her first response to the complainant dates from September 30, 2020. Consequently, the defendant violated Article 12.3 of the GDPR.

II.3. Regarding the complaint of violation of Article 12.2 of the GDPR

II.3.1. Position of the complainant

59. As stated in the procedural background, the complainant indicates in her conclusions that in addition to the violation of Article 12.3 of the GDPR, the defendant has also committed a breach of Article 12.2 of the GDPR by not facilitating the exercise of the rights of the data subjects. The complainant mentions in this regard that the defendant

9 Regarding the communications to the addresses (address 4) and (address 5), the Contentious Chamber can only note that the defendant indicates that one of them (address 4) no longer exists, but that if clicked on, there is automatic redirection, which is not the case if the address is copied into an email. For the rest, the Contentious Chamber applies to the address (address 5) (qualified as a general address and not dedicated to the exercise of rights as stated in the privacy policy of the A newspaper) the same reasoning as that developed in section II.2.

Decision on the merits 65/2024 — 15/20

gets lost in the information it provides to the concerned parties and strays in the multitude of its email addresses.

II.3.2. Position of the defendant

60. The defendant notes that the complainant raises this complaint for the first time in her conclusions. She adds that the privacy policy is easily accessible in its entirety and believes she understands that the complaint is related to the issue of the email addresses mentioned above. She considers that the complainant is partly responsible for complicating the situation; she sought different addresses in different places. The complainant could also have, upon noticing that the email sending was not working, contacted the defendant by mail.

II.3.3. Assessment of the Contentious Chamber

61. Regarding this grievance based on Article 12.2 of the GDPR, the Contentious Chamber limits itself to recalling that it is indeed the responsibility of the data controller to facilitate the exercise of the rights of the concerned parties. If the latter has several email addresses to which he can be contacted, it is good practice to provide acknowledgments of receipt, which, if necessary, redirect the sender to a specific relevant address. Similarly, it is good practice to have an internal procedure that ensures that even misdirected requests for the exercise of rights are treated as they should be, with, however, the limit set by the EDPB as recalled above regarding sending to addresses that are, especially in a large group like the defendant which has many actors and websites, clearly not intended to receive such requests. The Contentious Chamber has taken note of the systematic acknowledgment of receipt that the defendant will implement (see points 53 and 78).

62. The Contentious Chamber also recalls Recital 59 of the GDPR, which emphasizes regarding this obligation that the data controller should "also provide means for requests to be made electronically, particularly when personal data is subject to electronic processing."¹⁰ In general, the means provided

by a data controller for the concerned party to exercise their rights should be adapted to the context and the nature of the relationship and interactions between the data controller and the concerned party. Therefore, according to the Contentious Chamber, the complainant cannot be reproached for having addressed the defendant exclusively by email and not by regular or registered mail.

10 One might think of an electronic form that also allows the requester to keep proof of the sending of this form with a copy of it.

Decision on the merits 65/2024 — 16/20

II.4. Regarding the grievances based on the violation of Articles 12.1, 13, and 14 of the GDPR

II.4.1. Position of the complainant

63. As stated in the procedural background, it is, as with Article 12.2 discussed above, through conclusions that the complainant alleges that, in addition to the violation of Article 12.3 of the GDPR, the defendant has also committed a breach of Articles 12.1, 13, and 14 of the GDPR. The complainant mentions in this regard that the defendant gets lost in the information it provides to the concerned parties and strays in the multitude of its email addresses and does not inform "in a concise, transparent, understandable, and easily accessible manner" the concerned parties on how to exercise their rights as required by these provisions.

II.4.2. Position of the defendant

64. As with the grievance based on the violation of Article 12.2 of the GDPR, the defendant notes that the complainant raises this complaint for the first time in her conclusions. She adds that the privacy policy is easily accessible in its entirety and believes she understands that the complaint is related to the issue of the email addresses mentioned above. The defendant considers that this grievance is not supported by sufficient evidence.

II.4.3. Assessment of the Contentious Chamber

65. Regarding the grievance based on Articles 12.1, 13, and 14 of the GDPR, the Contentious Chamber considers that these alleged violations through conclusions are not sufficiently substantiated by the complainant. It is of the opinion that while it is true that, in this case, there was no response within the timeframe of Article 12.3 of the GDPR to the complainant in the circumstances described above, in violation of this article, it cannot, without further argument or debate, be concluded that the information provided to the complainant would not comply with the GDPR. The Contentious Chamber is not in a position to find a breach of these provisions on the part of the defendant.

III. Corrective measures and sanctions

66. Under Article 100.1 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order the dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;

Decision on the Merits 65/2024 — 17/20

- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the concerned person to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with processing;
- 10° order the rectification, restriction, or deletion of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° forward the file to the Public Prosecutor's Office of the King of Brussels, which will inform it of the follow-up given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

67. Regarding the complaint concerning the alleged violation of Article 17.1 of the GDPR (Title II.1.), the Litigation Chamber decides to dismiss it based on Article 100.1. 1° of the LCA for reasons of opportunity.

68. In matters of dismissal, the Litigation Chamber must justify its decision step by step and:

- pronounce a technical dismissal if the file does not contain or does not sufficiently contain elements likely to lead to a sanction or if it has a technical obstacle preventing it from making a decision;
- or pronounce an opportunistic dismissal if, despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate given the priorities of the DPA as specified and illustrated in the Litigation Chamber's Policy on Dismissals.

11 Market Court (Court of Appeal of Brussels), September 2, 2020, 2020/AR/329, p. 18.

12 <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

Decision on the Merits 65/2024 — 18/20

69. In the event of dismissal based on several grounds (respectively, technical and/or opportunistic dismissal), the grounds for dismissal must be addressed in order of importance.

70. In the present case, the Litigation Chamber decides to proceed with a dismissal for reasons of opportunity based on Article 100.1.1° of the LCA. In support of this decision, the Litigation Chamber takes into account the specific circumstances of the case, particularly the fact that the French-speaking Court of First Instance of Brussels has made a decision based notably on Article 17.1 of the GDPR, ordering the de-indexing of the disputed articles and that following this judgment, the complainant confirms that the disputed press articles are no longer available on the website of newspaper A and that the defendant has thus taken measures to execute said judgment. On this basis, the complainant clearly and unambiguously indicates the renunciation of the part of their complaint alleging a violation of Article 17.1 of the GDPR by the defendant.

71. According to its Policy on Dismissals, the Litigation Chamber states in criterion B.2.1. that often, if a judgment or ruling has been made on one of the grievances of the complaint filed with the DPA, the Litigation Chamber will consider it inappropriate to address this grievance in a separate decision. It is indeed not within the priorities of the Litigation Chamber to judge a second time on the same facts and alleged breaches in order to allow for a review of a judicial or administrative decision made by another competent authority outside the appeal procedures specific to it.

72. As specified in the Policy on Dismissals note, such a decision will result from an assessment of opportunity by the Litigation Chamber in each specific case.

73. In addition to the judgment rendered, the complainant has also, as mentioned, renounced the part of their complaint based on Article 17.1 of the GDPR due to the execution of said judgment.

74. Certainly, the withdrawal of their complaint by a complainant or the reduction of it to one or another grievance does not ipso facto remove the Litigation Chamber from the file. Indeed, the review by the Litigation Chamber is not so much aimed at resolving disputes between parties as it is one of the instruments available to the DPA to ensure compliance with the rules relating to data protection, in accordance with the provisions of European treaties, the GDPR, and the LCA. Thus, if a complaint is filed and then forwarded for examination to the Litigation Chamber as an admissible complaint, the Litigation Chamber must assess whether the reported facts constitute a violation of one of the legal provisions whose compliance is subject.

13 Policy on Dismissals of the Litigation Chamber, 06/18/2021, point 3 ("In what cases is my complaint likely to be dismissed by the Litigation Chamber?"), available at <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

Decision on the merits 65/2024 — 19/20

regarding the control of the DPA. The mere fact that the complainant withdraws their complaint (as well as the fact that the breach may have been remedied during the proceedings, for example) does not suffice to eliminate any (past) violation that may have been committed by the data controller, nor does it deprive the competent bodies of the DPA, including the Contentious Chamber, of the exercise of their respective powers. Thus, circumstances specific to the case may justify that, notwithstanding the

withdrawal of the complaint, the Contentious Chamber continues its examination of the complaint in the exercise of its competence. The withdrawal is merely one element that the Contentious Chamber may take into account when deciding, if necessary, to dismiss the complaint.

75. In this case, the Contentious Chamber notes that this withdrawal is motivated by the execution, confirmed by the complainant, of the judgment of the French-speaking Court of First Instance of Brussels dated (...). This withdrawal is thus taken into account by the Contentious Chamber as an additional element in its assessment regarding the appropriateness of continuing the examination of this aspect of the complaint, especially since a judicial decision has been made based on Article 17.1 of the GDPR, which does not manifestly misapply the GDPR. If this were the case, it could lead the Contentious Chamber - which is also responsible for ensuring a coherent application of the GDPR - to adopt a different decision.

76. In conclusion, in support of the above, the Contentious Chamber does not find it appropriate to continue the examination of the aspect of the complaint that the complainant derived from the violation of Article 17.1 of the GDPR and dismisses it for reasons of appropriateness.

77. Regarding the violation of Article 12.3 of the GDPR noted in point II.2., the Contentious Chamber decides to sanction it with a reprimand addressed to the defendant based on Article 100.1. 5° of the LCA.

78. The Contentious Chamber is of the opinion that, in doing so, it adopts the appropriate sanction for the identified breach in accordance with the requirements of Article 84 of the GDPR. The Contentious Chamber thus sanctions a past breach that can no longer be remedied with respect to the complainant at the very least. The defendant has a privacy policy that mentions contact addresses as well as a DPO. The defendant intends to complement its system with an automatic receipt message when sending an email to its DPO, as is already the case for any communication sent to the address dedicated to the exercise of rights available on the website of newspaper A (address 1). In this context, the Contentious Chamber deems the reprimand it addresses to the defendant sufficient, supplemented by a reminder of the rules regarding the modalities for exercising the rights of the data subjects, particularly concerning the use of dedicated email addresses and the treatment that must be reserved for requests sent via those addresses.

79. Finally, regarding the grievances arising from the violation of Article 12.2 of the GDPR (title II.3.), as well as Articles 12.1, 13, and 14 of the GDPR (title II.4.), the Contentious Chamber dismisses them.